

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1946

By: MCCANE

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 6-101, which relates to teacher contracts; prohibiting certain contract terms that are less than one year; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-101, is amended to read as follows:

Section 6-101. A. Except as provided in subsection E of this section, no person shall be permitted to teach in any school district of the state without a written contract, except as provided herein for substitute teachers and except teachers of classes in adult education. Except as provided in subsection ~~J~~ K of this section, the board of education of each school district, wherein school is expected to be conducted for the ensuing year, shall employ and contract in writing with qualified teachers for and in the name of the district. One copy of the contract shall be filed

1 with the clerk of the board of education and one copy shall be
2 retained by the teacher.

3 B. Except as otherwise provided by subsections ~~¶~~ K and ~~¶~~ L of
4 this section and any other law, no board of education shall have
5 authority to enter into any written contract with a teacher who does
6 not hold an Oklahoma criminal history record check as required by
7 Section 6-190 of this title and who does not hold a valid
8 certificate issued or recognized by the State Board of Education
9 authorizing the teacher to teach the grades or subject matter for
10 which the teacher is employed. Any board of education paying or
11 authorizing the payment of the salary of any teacher not holding a
12 certificate, as required herein, shall be adjudged to be guilty of a
13 fraudulent expenditure of public funds and members voting for such
14 payment shall be held jointly responsible for the return of the
15 amount of any public monies thus expended, upon suit brought by the
16 district attorney or by any interested citizen in the district where
17 such funds have been expended.

18 C. It shall be the duty of the superintendent of schools under
19 whose supervision teachers have been contracted to teach to certify
20 to the treasurer of the contracting district the names of the
21 teachers holding valid certificates and student teachers with whom
22 contracts have been made and the names of substitute teachers
23 employed in accordance with law. The treasurer shall not register
24 any warrant issued in payment of salary to any teacher whose name is

1 not included in such list and shall be liable on the official bond
2 for the treasurer for the amount of any warrant registered in
3 violation of the provisions of this section.

4 D. Whenever any person shall enter into a contract with any
5 school district in Oklahoma to teach in such school district the
6 contract shall be binding on the teacher and on the board of
7 education until the teacher legally has been discharged from the
8 teaching position or released by the board of education from the
9 contract. Except as provided in Section 5-106A of this title, until
10 such teacher has been thus discharged or released, the teacher shall
11 not have authority to enter into a contract with any other board of
12 education in Oklahoma for the same time covered by the original
13 contract. If upon written complaint by the board of education in a
14 district any teacher is reported to have failed to obey the terms of
15 the contract previously made and to have entered into a contract
16 with another board of education without having been released from
17 the former contract except as provided in Section 5-106A of this
18 title, the teacher, upon being found guilty of such charge at a
19 hearing held before the State Board of Education, shall have such
20 teacher's certificate suspended for the remainder of the term for
21 which the contract was made.

22 E. A board of education shall have authority to enter into
23 written contracts with teachers for the ensuing fiscal year prior to
24 the beginning of such year. If, prior to the first Monday in June,

1 a board of education has not entered into a written contract with a
2 regularly employed teacher or notified the teacher in writing by
3 registered or certified mail that a recommendation has been made not
4 to reemploy the teacher for the ensuing fiscal year, and if, by
5 fifteen (15) days after the first Monday in June, such teacher has
6 not notified the board of education in writing by registered or
7 certified mail that such teacher does not desire to be reemployed in
8 such school district for the ensuing year, such teacher shall be
9 considered as employed on a continuing contract basis and on the
10 same salary schedule used for other teachers in the school district
11 for the ensuing fiscal year, and such employment and continuing
12 contract shall be binding on the teacher and on the school district.

13 F. Unless otherwise allowed by law, a board of education shall
14 not enter into or cause to be renewed a written contract with a
15 certified teacher for a period of time that is less than one (1)
16 year.

17 G. Whenever a school district is engaged in contract
18 negotiations with teachers employed by that school district after
19 the school year has begun and the teachers are employed on a
20 continuing contract basis, the school district shall, beginning at
21 the first of the school year, pay the teachers any state-mandated
22 salary increases and salary schedule increases to which each teacher
23 is otherwise entitled.

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1 ~~G.~~ H. No school district or any member of the board of
2 education of a district shall be liable for the payment of
3 compensation to a teacher or administrator under the provisions of
4 any contract for the ensuing year, if it becomes necessary to close
5 the school because of insufficient attendance, disorganization,
6 annexation, consolidation, or by dispensing with the school
7 according to law, provided, such cause is known or action is taken
8 prior to July 1 of such ensuing year.

9 ~~H.~~ I. No school district or any member of a board of education
10 shall be liable for the payment of compensation to any teacher or
11 administrator for the unexpired term of any contract if the school
12 building to which the teacher or administrator has been assigned is
13 destroyed by accident, storm, fire, or otherwise and it becomes
14 necessary to close the school because of inability to secure a
15 suitable building or buildings for continuation of school. Teachers
16 and administrators shall be entitled to pay for any time lost when
17 school is closed on account of epidemics or otherwise when an order
18 for such closing has been issued by a health officer authorized by
19 law to issue the order.

20 ~~I.~~ J. A teacher may contract with more than one school district
21 for the same school year as provided in Section 5-106A of this
22 title.

23 ~~J.~~ K. A board of education shall have authority to enter into
24 written contracts for the ensuing fiscal year prior to the beginning

1 of the year with persons who are not certified to teach by the State
2 Board of Education as long as the person is actively in the process
3 of securing certification. The person shall not be allowed to teach
4 in a classroom until the person has met or completed all of the
5 requirements for certification as provided for in Section 6-190 of
6 this title. If the person has not obtained valid certification by
7 the first day of the ensuing school year, the contract shall be
8 terminated.

9 ~~K.~~ L. A board of education of a school district shall have the
10 authority to enter into written contracts for employment for the
11 ensuing fiscal year with persons who are student teachers as defined
12 in Section 1-116 of this title while such persons are still student
13 teachers. A student teacher shall not be allowed to teach in a
14 classroom during the ensuing fiscal year until meeting or completing
15 all of the requirements for certification as provided for in Section
16 6-190 of this title. If the student teacher has not obtained valid
17 certification by the first day of the ensuing school year, the
18 contract shall be terminated. A board of education of a school
19 district shall have the authority to commit to payment of a stipend
20 or signing bonus to a student teacher as defined in Section 1-116 of
21 this title while that person is still a student teacher, if that
22 person has entered into a written contract for employment for the
23 ensuing fiscal year. A board of education shall make any such
24 student teacher stipend or signing bonus conditional on such person

1 fulfilling the first year of his or her contract for the ensuing
2 fiscal year. Any stipend or signing bonus paid under the terms of
3 this subsection shall not be considered compensation for purposes of
4 teacher retirement or the minimum salary schedule.

5 ~~H.~~ M. A teacher whose certificate was suspended by the State
6 Board of Education pursuant to Section 3-104 of this title and
7 Sections 314 and 314.1 of Title 75 of the Oklahoma Statutes shall be
8 placed on suspension pursuant to the provisions of Section 6-101.29
9 of this title while proceedings for revocation or other action are
10 pending before the State Board of Education. The provisions of this
11 subsection shall not preclude the initiation of due process
12 procedures in accordance with Section 6-101.20 et. seq of this
13 title.

14 SECTION 2. This act shall become effective July 1, 2025.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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